



U.S. Department  
of Transportation

Research and  
Special Programs  
Administration

400 Seventh Street, S.W.  
Washington, D.C. 20590

**DOT-E 10120 (EXTENSION)**  
**FIRST REVISION February 20, 1991**

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 10120 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to December 1, 1993. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.

*801*

*[Signature]*  
Alan I. Roberts  
Associate Administrator  
for Hazardous Materials Safety

**DEC 13 1991**

(DATE)

Dist: FHWA

EXEMPTION HOLDER

APPLICATION DATE

American Cyanamid Company  
Wayne, NJ

October 24, 1991



U.S. Department  
of Transportation  
  
Research and  
Special Programs  
Administration

400 Seventh Street, S.W.  
Washington, D.C. 20590

FEB 20 1991

DOT-E 10120  
(FIRST REVISION)

1. American Cyanamid Company, Wayne, New Jersey, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to offer packages prescribed herein of a Class B poison for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the transportation of an organic phosphate mixture in a packaging not currently authorized in 49 CFR, and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on applications from American Cyanamid Company dated January 25, 1989 and June 26, 1990, submitted in accordance with 49 CFR 107.103 and the public proceeding thereon.

3. HAZARDOUS MATERIALS (Descriptor and class). Organic phosphate mixture containing not more than 21% terbufos or phorate. Also, organic phosphate mixture containing both terbufos and phorate not to exceed 21.0% by weight of combined active ingredients (Terbufos and/or Phorate), classed as Poison B.

4. PROPER SHIPPING NAME (49 CFR 172.101). Organic phosphate compound mixture, dry.

5. REGULATION AFFECTED. 49 CFR 173.377.

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle.

7. SAFETY CONTROL MEASURES. Packaging prescribed is a one cubic foot capacity free-standing container constructed of high density polyethylene having a minimum wall thickness of 0.030". Container must be equipped with an automatically closing plastic valve. Details of the container and the valve are provided in the January 25, 1989 application for exemption. The packages will be palletized in 3x3 layers, 4 layers high. Top and bottom pallet pads must be used and the entire pallet load must be stretch-wrapped.

8. SPECIAL PROVISIONS.

a. Persons who receive packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with, and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

b. A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

c. Drivers must have been instructed as to necessary safeguards and proper procedure in the event of unusual delay, fire, or accident.

d. The outside of each package must be plainly and durably marked "DOT-E 10120".

9. REPORTING REQUIREMENTS: Any incident involving loss of packaging contents or packaging failure must be reported to the Associate Administrator for Hazardous Materials Safety as soon as practicable.

10. EXPIRATION DATE. December 31, 1991.

Issued at Washington, D.C.

  
Alan I. Roberts  
Associate Administrator  
for Hazardous Materials Safety

FEB 20 1991

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590.  
Attention: Exemptions Branch.

Dist: USCG, FAA, FHWA, FRA.